

Tentative Rulings
September 1, 2026
Department S-17
Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, by CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 708-8715 in advance of the hearing. If all parties submit on a tentative ruling, it will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings. Parties who wish to have a transcript must retain their own private reporter and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the Department if you need this form. Parties who do not retain their own reporter have waived the right to one.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

13. *Mabudian, M.D., et al, v. Beaver Medical Group, PC, et al*, Case No. CIVSB2133187
Defendants' Motion to Seal
9/1/26, 1:30 p.m., Dept. S-17

The motion is **MOOT** as to Exhibits 3, 4, 9, and 10, in light of the parties' agreement that these documents may be filed in support of Defendants pending motion for summary judgment or adjudication.¹ The Court would **GRANT** the motion as to Exhibits 5 through 8.

The Court would also **ORDER** the return of the Appendix of Exhibits currently lodged. Defendants have ten days in which to re-file the Appendix with Exhibits 3, 4, 9, and 10 (see *supra*) and Exhibits 1, 2, and 11, properly redacted (see FN 1). Defendants may submit Exhibits 5 through 8 separately under seal.

Unless confidentiality is required by law, all court filings are presumed to be public. (Rules of Court, rule 2.550(c).) In order to seal a court filing, the court must make five express findings: (1) there exists an overriding interest that overcomes the public's right of access; (2) the overriding interest supports the sealing; (3) there is a substantial probability that the overriding interest will be prejudiced if the record is not sealed; (4) the proposed sealing is narrowly tailored to the need; and (5) there are no less restrictive means to protect that overriding interest. (Rules of Court, rule 2.550(d).)

At issue are Exhibits 3, 4, 5, 6, 7, 8, and 9, that Defendants submitted in support of their motion for summary judgment or adjudication (MSJ). On May 29, 2026, Defendants lodged conditionally under seal their entire Appendix of Evidence in support of their MSJ. Because Exhibits 3, 4, 9, and 10 relate only to Plaintiff's medical information and Plaintiff states that she does not oppose and, in fact, authorizes the documents being filed in the public record, Defendants have withdrawn their motion as to those exhibits. Thus, the motion is moot as to those exhibits.

Now, the motion to seal only remains at issue as to Exhibits 5 through 8, which are various email chains from March 18, 2021 [Exh. 5]; March 19, 2021 [Exh. 6]; and May 6, 2021 [Exh. 8]; as well as a facsimile from April 20, 2021 [Exh. 7]. Defendants assert Exhibits 5 to 8 contain financial and business information and, thus, are protected from disclosure. They provide case citations to cases in which courts sealed financial information involving confidential matters related to business operations that if revealed would interfere with a party's ability to effectively compete in the marketplace and prejudice a party's legitimate interests. Defendants assert that, if their business decisions were made public, it is likely that competitors would make use of such information and prejudice Defendants' market position.

Defendants' counsel's declaration states the Exhibits at issue have been marked confidential under the stipulated protective order. He also states the exhibits involve confidential nonpublic business information. (Wilson Decl., ¶¶2-3.) A serious injury from public disclosure must be shown and without such showing, the exhibits cannot be ordered sealed. (*Universal City Studios, Inc. v. Superior Court* (2003) 110 Cal.App.4th 1273, 1281-1282.) Here, the at-issue documents have been designated confidential pursuant to the applicable protective order, and a review of the relevant exhibits indicates at least implied descriptions of internal Utilization Management (UM) processes and deliberations.

¹ On August 24, 2026, Defendants filed a Notice of Lodging Documents Conditionally Under Seal, in which it states that Plaintiff has requested that her home address be redacted from the documents and then requests the attached Exhibits 1, 2, and 11 be lodged as the exhibits instead of the ones previously submitted on May 29, 2026. Defendants agree this approach is reasonable.

While the Court wishes the supporting declaration was more detailed, it is sufficient to support the request. (See Wilson Decl., ¶3 [confidential information containing confidential and proprietary business information].) Thus, the Court would find the factors under Rule 2.550 to be satisfied.

14. *South Colton Families First, et al, v. City of Colton, et al*, Case No. CIVSB2317228
Demurrer of Real Party in Interest IDI Agua Mansa, LLC
9/1/26, 9:00 a.m., Dept. S-17

The Court would **CONTINUE** the matter so that movant may satisfy the meet-and-confer requirements.

Prior to a demurrer, a party is required meet and confer in person or by telephone or by video conference with the party who filed the pleading for purposes of “determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” (Code Civ. Proc., § 430.41(a) [demurrer].)

Here, the supporting declaration does not confirm compliance with the meet-and-confer requirements. (See Shardlow Decl.) Rather, the declaration sets out that a meet-and-confer email with no response. (Shardlow Decl., ¶3 & Exh. A.) It fails to indicate any attempt to contact in person, by telephone, or by video or any frustrated attempt at such compliance. Thus, the Court would continue the matter to allow compliance. The parties will submit a joint declaration at least ten court days before the next hearing detailing the meet-and-confer efforts and whether any issues in the underlying demurrer were resolved.

16. *Wylie v. NewRez LLC, et al*, Case No. CIVSB2513110
Plaintiff’s Motion for Additional Time to File Third Amended Complaint
9/1/26, 9:00 a.m., Dept. S-17

Tentative Ruling

The Court would **DENY**.

Case Summary

In tis case, Plaintiff alleges that she owns real property and that Defendant has foreclosed upon her property without complying properly with foreclosure laws. On May 19, 2025, she filed as a *pro per* plaintiff. She then filed a First Amended Complaint (FAC) and later a Second Amended Complaint (SAC).

Relevant here, the Court sustained Defendant NewRez’s demurrer to the SAC on June 3, 2026. The order granted Plaintiff twenty days of leave to amend. (Minute Order, 6/3/26.)² Thus, because Plaintiff was present and had oral notice, Plaintiff had until June 23, 2026, to amend. On July 6, 2026, Plaintiff filed a motion for extension of time to file a Third Amended Complaint (TAC). Prior to that motion being heard,

² Notably, the tentative decision contemplated thirty days’ leave to amend. The adopted ruling after oral argument, as indicated by the minute order, shortened that time frame to twenty days. (See Tentative, 6/3/26.)

Defendant NewRez came in *ex parte* on July 23, 2026, seeking to have the Court dismiss Plaintiff's SAC for failure to amend within the allotted time. The Court continued that application to dismiss to same date and time as this instant motion for additional time to file.

Analysis

Preliminarily, the Court notes that a *pro per* litigant is held to the same restrictive procedural rules as an attorney. (*Bistawros v. Greenberg* (1987) 189 Cal.App.3d 189, 193.) When an individual decides to represent himself in *propria persona*, he is entitled to the same, but no greater, consideration than other litigants and attorneys. (*Id.*, at p. 193, quoting *Nelson v. Gaunt* (1981) 125 Cal.App.3d 623, 638.)

Here, the motion is entitled "Motion for Extension of Time to File Third Amended Complaint." (Notice, 1:14-16.) The first inquiry is under what authority Plaintiff seeks Court action: Certainly, the motion is not a motion for *leave* to amend, since leave was already given as part of the ruling on Demurrer on June 23, 2026. Plaintiff's moving papers (notice, memorandum, declaration) do not cite to *any* statutes, case law, or other legal authority supporting the relief she seeks. In this regard, Plaintiff's moving papers do not sufficiently define the motion.

Defendant NewRez's opposition speculates that the motion might be made under Code of Civil Procedure section 473 on grounds of mistake, inadvertence, excusable neglect. (Opp., 6:23-24 [re CCP § 473(b)].) However, that position is speculation, and – in any event – the motion and supporting documents do *not* set forth sufficient grounds for the Court to determine the apparent neglect was excusable. (Opp., 7:4-5 ["Here, Plaintiff fails to describe any type of injury which ordinary prudence could not have guarded against."].) Rather, Plaintiff simply indicates that the failure was "not intentional." (Points & Authorities, 1:23; also Wyle Decl., ¶¶3-4 [general reference to "illness" without any documentary support; assessment of incapacity; or indicated timeframe].) Thus, even if the Court were inclined to review the motion through the lens of Section 473, there is insufficient support.

When a demurrer to any pleading is sustained and time to amend is given, the time so given runs from the service of notice of the decision or order, unless the notice is waived in open court with the waiver entered in the minutes. (Code Civ. Proc., § 472b.) Because Plaintiff was present at the June 3rd hearing, the 20 days started to run that day and expired on June 23, 2026. However, even if the court considers a 30 days' leave (as originally stated in the tentative) or adds an extra five calendar days for U.S. mail service to account for notice of the order, Plaintiff still missed the filing deadline because her TAC was filed on August 5, 2026, more than a month later. Plaintiff acknowledges she failed to file the TAC timely. (Wylie Decl., ¶¶2-6.) Thus, the Court may at least conclude that Plaintiff's attempt to file was untimely under all possible factual scenarios.

The Court cannot speculate upon which legal authority or factual basis, if any, might provide the requested relief. To do so would be to undertake an advocacy role on behalf of a litigant, which is improper. Without the stated grounds for relief, the court cannot ascertain what the standard is for the relief sought and whether Plaintiff met that standard. As a result, the Court is inclined to deny the motion.
